

24SMCV05841 24SMCV05841

County: los-angeles

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Department: M

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Case Number: 24SMCV05841 Hearing Date: September 22, 2026 Dept: M

CASE NAME: Menowitz v. Toppani

CASE NO.: 24SMCV05841

MOTION: Motion

to Compel Deposition

HEARING DATE: 9/22/2026

Legal

Standard

Service of a proper deposition notice obligates a party or "party-affiliated" witness (officer, director, managing agent or employee of party) to attend and testify, as well as produce any document, electronically stored information, or tangible thing for inspection and copying. (CCP § 2025.280(a).) If, after service of a deposition notice, a party deponent fails to appear, testify, or produce documents or tangible things for inspection without having served a valid objection under CCP § 2025.410, the deposing party may move for an order compelling attendance, testimony, and production. (CCP § 2025.450(a).) The motion must be accompanied by a meet and confer declaration, or, when a party deponent fails to attend the deposition, the motion must also be accompanied by a declaration stating that the moving party has contacted the party deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) If the deposition notice included a request for production of documents, the motion to compel attendance must also show good cause to justify the production. (CCP § 2025.450(b)(1).)

A motion to compel production of documents described in a deposition notice must be accompanied by a showing of good cause. (CCP § 2025.450(b)(1).) In other words, the moving party must provide declarations containing specific facts justifying inspection of the documents described in the notice. Courts liberally construe good cause in favor of discovery where facts show the documents are necessary for trial preparation.

The motion to compel must be “made no later than 60 days after the completion of the record of the deposition.” (CCP § 2025.480(b).) This time limit also applies to motions based on a deposition subpoena for production of documents or a business records subpoena. The 60-day time limit runs from the date objections are served because the deposition record is then complete. (*Rutledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164, 1192.)

Analysis

Defendant Dominique Toppani moves to compel Plaintiff Marc Menowitz to comply with his served Notice of Deposition. Defendant also requests monetary sanctions against Plaintiff and/or his attorneys Chase Law & Associates, P.A., jointly and severally, in the sum of \$1,994.00.

Defendant explains that they have attempted to depose Plaintiff since October of 2025. Defendant noticed several depositions, including for February 9, 2026, May 5, 2026, June 30, 2026, and July 27, 2026. (Beaton Decl., ¶¶ 5-12.) Each time, Plaintiff’s counsel advised that they or their client was not available and requested a continuance without providing dates for availability. (*Ibid.*) Most recently, on July 31, 2026, Defendant noticed Plaintiff’s virtual deposition for August 24, 2026. (*Id.*, ¶ 13.) Plaintiff did not serve any objections. (*Id.*, ¶ 14.) On August 24, 2026, defense counsel appeared virtually for Plaintiff’s deposition at the time indicated in the Notice, along with a duly sworn court reporter. (*Id.*, ¶ 15.) Counsel and the court reporter waited for approximately 15 minutes for Plaintiff and his attorneys to appear, but they failed to do so. (*Id.*, Ex. 12 [affidavit of non-appearance].) Counsel inquired with Plaintiff’s counsel regarding the failure to appear, but Plaintiff’s counsel did not substantively respond to the issue. (*Id.*, ¶¶ 17-18, Exs. 13-14.)

Accordingly, the motion is GRANTED.

Plaintiff is ordered to appear virtually and give testimony at deposition pursuant to the terms of the July 31, 2026, deposition notice, within 10 days, at a mutually agreeable time and date. Monetary sanctions are awarded against Plaintiff and his counsel of record, jointly and severally, in the noticed amount of \$1,994.00. Sanctions are payable to Defendant's counsel of record within 30 days.